

24AVCV01017 24AVCV01017

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 24AVCV01017 Hearing Date: August 18, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

SANDRA M LOZANO OLAEZ,

Plaintiff,

v.

VALLARTA FOOD ENTERPRISES, INC. dba VALLARTA SUPERMARKETS; and DOES 1 through 50, inclusive,

Defendants.

Case Number 24AVCV01017

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 18, 2026

Dept. A-14

Judge William H. Forman

I. Background

Defendant Vallarta Food Enterprises, Inc. ("Defendant") moves the Court for an order compelling Plaintiff Sandra M Lozano Olazae ("Plaintiff") to attend her deposition.

On August 19, 2024, Plaintiff filed a complaint against Defendant, asserting one cause of action for Negligence and Premises Liability. Specifically, Plaintiff claims that on August 22, 2022, while on the premises of 440 E Palmdale Blvd., Palmdale, CA 93550 (the "Property"), which is owned, managed, controlled, inspected, serviced, maintained, operated, leased, and rented by Defendant, Plaintiff was injured when she slipped and fell on a puddle of liquid on the floor of the store, causing Plaintiff to fall. (Compl., ¶¶ 6-7, 10.) Plaintiff alleges Defendant failed to warn Plaintiff of the dangerous and defective conditions, which were known or should have been known by Defendant. (Compl., ¶ 9.)

On March 3, 2026, Defendant filed the present motion to compel Plaintiff to attend her deposition.

On March 12, 2026, Daniel filed an answer.

The present motion is unopposed.

II. Preliminary Procedural Issues

Meet and Confer Requirement – A motion to compel deposition shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450 subd. (b)(2).)

The Declaration of Gene S. Stone, Defense counsel, outlines repeated effort to meet and confer with Plaintiff's counsel regarding Plaintiff's deposition without response. The Court finds the meet and confer requirement has been met.

III. Legal Standard

Standard for Motions to Compel Depositions – Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code of Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code of Civ. Proc., § 2025.280, subd. (a).)

"If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving notice may move for an order compelling deponent's attendance and testimony, and the production . . . of any document . . . described in the deposition notice." (Code of Civ. Proc., § 2025.450, subd. (a).) The motion must set forth facts showing both good cause justifying the demand for any documents and a meet and confer declaration. (Code of Civ. Proc., § 2025.450, subds. (b)(1), (b)(2).)

IV. Discussion

Application – Defendant moves to compel the deposition of Plaintiff pursuant to Code of Civil Procedure section 2025.450, subdivision (a) on the grounds that Plaintiff, without justification or explanation, has repeatedly failed and refused to appear or make herself available for deposition following Defendant's timely noticing Plaintiff's deposition and numerous meet and confer efforts. (Motion, p. 1:26-2:7.)

The relevant background regarding efforts to schedule Plaintiff's deposition, as set forth by Defendant and undisputed by Plaintiff, is as follows:

On July 2, 2025, Defendant served its initial Notice of Deposition of Plaintiff, which set the remote deposition for August 4, 2025. (Motion, p. 3:17-19; Stone Decl., Ex. 3.) On July 31, 2025, without formal objection or reason for unavailability, Plaintiff's counsel informed Defense counsel that Plaintiff would not be appearing for the deposition, and it was cancelled. (Motion, p. 3:19-21; Stone Decl., Ex. 4.) On August 6, 2025, Plaintiff's counsel offered August 26, 2025 as a new date for deposition, assured that Plaintiff would be available August 26th, and requested formal notice of the deposition. (Motion, p. 3:25-26; Stone Decl., Ex. 6.) Defense counsel then served the First Amended Notice of Deposition on August 15, 2026, noticing a remote deposition date of August 26, 2025. (Motion, p. 3:26-4:2; Stone Decl., Ex. 7.)

On August 25, 2025, without any objection, Defendant provided Plaintiff with the link for the remote deposition, but after the link was sent, Plaintiff's counsel indicated that Plaintiff was not available for deposition the next day on August 26, 2025. (Motion, p. 4:3-5; Stone Decl., Ex. 8.) Defense counsel responded by requesting dates quickly, as trial was set to commence in seven months. (Motion, p. 4:5-6; Stone Decl., Ex. 8.) Defense counsel followed up with Plaintiff's counsel on August 29, 2025 and September 5, 2025 without response, and subsequently served a Second Amended Notice of Deposition of Plaintiff, set to proceed remotely on January 15, 2026. (Motion, p. 4:9-14; Stone Decl., Ex. 9-10.) Defense counsel attempted to confirm the deposition on January 8, 2026, and Plaintiff's counsel responded by stating "no, the depo is not going forward as there is some significant outstanding written discovery that is still pending." (Motion, p. 4:14-16.) Defendant obtained a certificate of non-appearance on January 15, 2026. (Motion, p. 4:16-17; Stone Decl., Ex. 11.)

On January 15, 2026, Plaintiff's counsel emailed Defense counsel and provided dates for Plaintiff's deposition on March 25 and April 1, 2026, without reason for the extended delay, but Defendant agreed to set the deposition for April 1, 2026 in light of ongoing discussions and circulation of a stipulation to continue trial and all related dates. (Motion, p. 4:18-25; Stone Decl., Ex.12.) Defendant served its Third Amended Notice of Deposition on January 16, 2026, with the deposition to proceed remotely on April 1, 2026. (Motion, p. 4:25-26; Stone Decl., Ex. 13.) When Defendant learned the Court had granted a continuance and set trial for May 1, 2026, Defendant served its Fourth Amended Notice of Deposition, set to proceed on February 17, 2026. (Motion, p. 4:26-5:1; Stone Decl., Ex. 14.) Defendant was unable to confirm the deposition with Plaintiff's counsel, Plaintiff failed to respond or object to the deposition, and Defendant took a notice of non-appearance on February 17, 2026. (Motion, p. 5:1-4; Stone Decl., Ex. 15.) To date, Plaintiff has failed to appear for deposition. (Motion, p. 5:6.)

The Court finds good cause to grant Defendant's unopposed motion. As Defendant notes, good cause to obtain discoverable information exists here, as the information sought is necessary for Defendant to adequately defend this matter, assess Plaintiff's liability argument against Defendant, to assess the nature and extent of Plaintiff's injuries, and to evaluate her credibility. Plaintiff, on the other hand, has shown no good cause as to why she has not yet appeared or why the Court should not grant this motion.

Furthermore, no law permits a party to disregard their legal obligations under the Civil Discovery Act and refuse to appear for deposition on the basis that there is outstanding written discovery which has not yet been produced by the deposing party. Upon notice of Plaintiff's deposition, Plaintiff could have objected to any defects in the deposition notice, or object to a unilaterally set deposition on the basis of unavailability and provide alternate dates of availability. Here, Plaintiff 1) failed to formally object; 2) then provided alternative dates that Defendant accepted; 3) untimely objected to a deposition date proposed by Plaintiff herself; 4) failed to appear without any notice or objection on two occasions; and 5) ultimately failed to appear or make herself available on four separate occasions. This is a blatant misuse of the discovery process.

In light of Plaintiff's refusal to make herself available, Defendant's clear statutory right to depose Plaintiff, and Plaintiff's lack of diligence in complying with discovery, Defendant's motion is GRANTED.

Request for Sanctions – Defendant requests sanctions against Plaintiff or her attorney in the amount of \$1,913.50 for reasonable attorney's fees and costs incurred in filing this motion. (Motion, p. 2:1-2.) The Court has discretion to impose a monetary sanction on a party who has engaged in the misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (a).)

Defendant's request for sanctions is GRANTED as requested.

V. Conclusion

Defendant Vallarta Food Enterprises, Inc.'s Motion to Compel Plaintiff to Attend her Deposition is GRANTED. Plaintiff shall appear for deposition within 20 days of this Order.

Defendant Vallarta Food Enterprises, Inc.'s Request for Monetary Sanctions is GRANTED against Plaintiff and Plaintiff's counsel in the amount of \$1,913.50. Plaintiff and/or her counsel shall make payment in full to Defendant's counsel Homan, Stone & Rossi within 10 days of this Order.